

		Defendant Juni Farmanfarmaian Ardalan has been voluntarily dismissed, so this separate complaint is appropriate against one Defendant. However, Plaintiff asserts that consolidation of the two matters will resolve the issue. In reply, moving Defendants state, "Since Plaintiff has stipulated to consolidation of the two cases, that is exactly what the court should now order in lieu of sustaining the demurrer. Consolidation will effectively serve the same purpose as abatement." Code of Civil Procedure section 1048(a) states, "(a) When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." Here, the Court intends to consolidate this case and Case No. 2023-01338835, as agreed upon by the parties, rendering the demurrer moot. The parties shall appear at the hearing to discuss whether consolidations should be for all purposes including trial.
4	First American Title Insurance v. Gomez 2025-01460028 Demurrer to Cross Complaint	The Demurrer of Cross-Defendants Fidelity National Title Insurance Company, Fidelity National Title Company, Chicago Title Insurance Company, and Chicago Title Company to the Cross-Complaint of Mariquita S. Gomez is SUSTAINED with leave to amend. The Cross-Complaint alleges claims related to the movants' alleged failure to indemnify and defend Defendant/Cross-Complainant in relation to the claims alleged against her in the Complaint. Cross-Defendants contend (1) the claims against them are ambiguous because Cross-Complainant alleges liability of four different entities without adequately explaining the different bases for liability, and (2) the negligence claim is not viable against a title insurer. As to Fidelity National Title Company, movants argue there are no facts alleged to support liability, only the allegation that it acquired other Cross-Defendants in 2000. As to Fidelity National Title Insurance Company and Chicago Title Company, movants contend they were not parties to the title insurance policy, rather they were

		merely the escrow company and parent company of the title insurer, respectively. Movants contend that a title insurer does not owe a duty to support the negligence claim alleged in the Cross-Complaint as a matter of law. Movants generally argue the Cross-Complaint fails to explain or distinguish their liability for the causes of action for declaratory relief, breach of contract, breach of the implied covenant of good faith and fair dealing, equitable indemnity, and contribution. Finally, movants contend Cross-Complainant fails to attach the subject title policy or adequately allege its specific terms which have been breached. Cross-Complainant has not filed a timely opposition. Therefore, the demurrer is sustained on the grounds set out in the motion. Cross-Complainant shall file an amended Cross-Complaint within 15 days of service of notice of this order.
5	Morales v. Trinh 2026-01539320 Motion to be Relieved as Counsel CMC	The motion of attorneys Harry Mouradian and Shaun Bauman from Bauman Law APLC to be relieved as counsel of record for plaintiff Amando Peralta Morales is CONTINUED to November 2, 2026, at 1:45 p.m. California Rules of Court, Rule 3.1362, subdivision (d) requires that: "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case." Although the declaration in support of the motion states client was served with the moving papers by mail, the proof of service does not show moving papers were served on client. Moving attorneys are to serve all moving papers in compliance with Rule 3.1362, subdivision (d) and file proof of service no later than 5 court days prior to the continued hearing. Moving attorneys to give notice.
6	Guetzkow v. Ford Motor Company 2025-01476742	The motion of attorney Larry Chae from Strategic Legal Practices, APC to be relieved as counsel of record for plaintiff Tyler Guetzkow is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.